

26PR00122 Matter of The Tardibuono Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-28

Motion: Petition for Assignment of Promissory Notes and Deeds of Trust or, in the Alternative, Assignment of Payments Due

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Petition for Assignment of Promissory Notes and Deeds of Trust or, in the Alternative, Assignment of Payments Due

Tentative Ruling: APPERANCES REQUIRED. The Court will discuss the request to set an evidentiary hearing on the issue of Lynn Tardibuono's separate property. However, the parties are advised that the Court is not inclined to set an evidentiary hearing in the absence of an offer of proof from Respondent, or an indication from Petitioner, that discovery has been provided demonstrating at least a prima facie case that the assets at issue, or some of them, are her separate property. Upon such a showing, the Court is inclined to leave the preliminary injunction in place and set the trust petition for trial. In the absence of even a prima facie showing/offer of proof from Respondent, the Court is inclined to find there are no factual disputes requiring an evidentiary hearing for resolution and to grant the petition.

The Court also notes Respondent's verified objections were due no later than 10 days before the August 28, 2026 hearing. (See Minute Order dated May 22, 2026.) Respondent filed his objections nine days before the August 28th hearing on August 19, 2026. Thus, Respondent's objections are untimely. However, there is no apparent prejudice to Petitioners arising from the one-day delay. In the interest of justice and deciding cases on their merits, the Court will consider Respondent's untimely objections.

The Court's ruling on Respondent's objections to the Petition for Assignment are OVERRULED. Respondent cites no legal authority supporting his objections. Objection Nos. 1, 2, and 3 do not address the admissibility evidence but instead generally challenge Petitioners' arguments and alleged misrepresentations made in the Petition. (See *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767, FN8.) Objection No. 4 states that Petitioners rely on improperly disclosed financial information subject to a Stipulation re Confidentiality. Respondent has neither moved this Court for a protective order nor shown the Court that Petitioners refuse to stipulate to a protective order. Objection No 5. similarly states that Petitioners have improperly disclosed medical information subject to a sealing order entered by the Marin County Superior Court. If correct, a remedy should be pursued in the Marin Court. However, this Court has not ordered any records to be sealed, Respondent has not filed a motion for a sealing order in this Court, and Respondent fails to provide any legal authority that would bind Petitioners in this Court to a sealing order issued by another trial court in a related but different case.